After presentation to the Archbishop the publication of the Official Report thus prepared was, however, delayed on various grounds of a practical kind. Lord Halifax, still indefatigable, in spite of his advanced years visited both Rome and Malines to forward the cause to which he had so long devoted himself: and ill tolerating the delays, he published in 1928 some *Notes on the Conversations at Malines* (Mowbray, January 6, 1928), and subsequently in 1930 the set of confidential documents concerning the Conversations to which, with the annexes, frequent reference has been made here.

It was still hoped that the Conversations would continue; and this hope was encouraged by the appointment of Mgr. Van Roey to succeed the Cardinal as Archbishop of Malines, as well as by his having so graciously presided over the Fifth Gathering. But this was not to be. Owing apparently to various causes, the policy of Rome altered; and what had once been encouraged was now to be discouraged. The day has not come for the door to open again either at Malines or elsewhere. Nevertheless, the necessity and the demand for a reorganization of the Christian Front grows steadily. *E pur si muove.*

APPENDIX

ADDENDUM I

OUTLINE OF POINTS

(*See* p. 19.)

The starting-point is the Lambeth Appeal.

The present objective is to make out a preliminary case for the holding of conferences between Roman Catholics and Anglicans, with some real, though at first informal, encouragement from the highest authorities on both sides.

Detailed discussion about points of difference had better be deferred to later conferences: but some must take place now, in order to pave the way for them.

1. The Lambeth Appeal opens a new chapter: its opportunity is great. See the trend towards unity prevalent in civil as well as ecclesiastical world.

Two features—one general and one special.

(*a*) General: It points to a type of external unity in the future which does not yet exist.

i. Not a mere federation.

ii. Not submission of any part to another.

iii. But a reincorporation of parts into an united body, larger and richer than any of the existing parts.

iv. A policy therefore not of surrender but of revision and mutual enrichment.

v. Old controversies to be reconsidered in this spirit.

(*Lambeth Encycl.*, p. 12: *Appeal*, Section 4.)

(*b*) Special: The offer of Anglicans in regard to Holy Orders. It depends upon prior satisfactory adjustment.

(*Lambeth Appeal*, Section 8.)

2. Is there sufficient common ground to make Conference fruitful? Lord Halifax's memoir shows in general a considerable agreement even about points where division is supposed to be sharp.

The disagreements also to be taken into view. But not embark on discussion of all.

3. Take first, "What is fundamental in doctrine?"

It should be possible to distinguish the primary from the secondary: and to base hopes of reunion on the primary.

Roman Catholics have clear conception of the *de fide* requirement. Anglicans not so clear: but see Articles XX and XXI; i.e. they agree that some dogmas are essential.

Roughly what is required of Anglicans is:

(1) Creeds—especially the two: because recited by all.

(2) Catechism, because preliminary to confirmation and first communion.

To these may be added as less explicit:

(3) The Holy Scriptures as interpreted by the Church and the Catholic doctors, being the test of *de fide* doctrine.

(4) The rites of the Prayer Book: lex supplicandi = lex credendi.

(5) The dogmatic decisions of the General Councils—4, 6, (or 7) in number.

Distinguish from the fundamentals three classes of other Statements.

(*a*) Secondary doctrines efficiently taught.

(*b*) Opinions of theologians.

(*c*) Views widely held by the Faithful without discouragement.

How far can such a distinction be accepted?

4. If (provisionally) accepted—

First determine what are the essential dogmas to serve as a common basis.

But observe difference of habit between Roman Catholics and Anglicans (perhaps more racial or temperamental than confessional.)

Roman Catholics tend to put *maximum* amount as fundamental, even to stress the non-fundamentals (*a*), (*b*) and (*c*).

Anglicans tend to aim at a *minimum* of fundamental experiment: and to stress "libertas in dubiis," i.e. a maximum of questions left open.

Lambeth has made suggestions as to a common basis. (*Lambeth Appeal*, Section 6.)

5. Where a direct clash emerges, explanations on either side may do much to remove it. The Church which is most apt to define should be most ready to give further explanations such as definition entails; but Anglicans must be ready also.

Such explanations may make some Roman Catholic definitions acceptable to Anglicans, which are not so now.

Not as *authoritative* (for them they have not

the authority of the whole Church) but as in themselves admissible and true.

In this sphere also distinguish between essential and non-essential. Probably some things which Anglicans treat under this head Roman Catholics will place under head of necessary doctrine. Then how far is it possible to agree in action but differ as to the reasons for it, e.g. Papacy?

6. The Uniat discipline is capable of further application: and its precedents suggest future possibilities.

ADDENDUM II

THE PAPACY

(*See* p. 39.)

An extract from the letter sent from the Cardinal Mercier to the Archbishop of Canterbury, April 11, 1923.

. . . The logical sequence of our conferences, as well as the duty of loyalty incumbent respectively on the members who met there, alike require that they should take up again the examination of the primacy of the Bishop of Rome, the successor of Peter, now defined as a dogma of the catholic faith at the Council of the Vatican.

Our third Conference which, like you, I hope may take place soon, and be in a certain sense on a larger scale, should therefore assume the task of studying this doctrine more fundamentally, and should devote itself, as you desire, to gaining a precise view of its significance.

Meanwhile I count it a personal duty to tell

you that which I believe to be the Roman Catholic doctrine on this special point, being the subject on which you have thought good to question me. You ask me if the primacy which is accorded to the Sovereign Pontiff signifies, or involves as a consequence, that by Divine right the Pope alone is Vicar of Christ upon Earth in the sense that from him alone there comes either directly or indirectly all legitimate power of exercising in a valid manner the ministry of the Church ;—" if the term ' primacy ' is understood as implying that the Pope holds *jure divino* the unique and solemn position of sole Vicar of Christ on earth from whom as Vicar of Christ must come directly or indirectly the right to minister validly within the Church."

Certainly the Roman Pontiff is in a supreme sense the Vicar of Christ upon earth ; and the piety of the faithful is accustomed to give him this title by choice. But St. Paul declares that all the Apostles are the Ministers of Christ " sic nos existimet homo ut ministros Christi." The Roman liturgy in the preface of the Mass for Apostles calls all the Apostles " Vicars," appointed by the Eternal Pastor for the pastoral supervision of His work. " Gregem tuum, pastor aeterne, non deseras, sed per beatos

apostolos tuos continua protectione custodias: ut iisdem Pastoribus gubernetur, quos operis tui Vicarios eidem contulisti praesse pastores." More than that, we constantly declare of the simple priest in the exercise of his ministry, that he is the representative of Christ, "another Christ," "sacerdos alter Christus." If he did not hold the place of Christ, as "vices gerens Christi, Vicarius Christi," how could he say truly of the Body and Blood of our Lord, "Hoc est Corpus meum; hic est calix Sanguinis mei"? How could he, in remitting sins which God alone can absolve, say "Ego te absolvo," I absolve thee?

The current application therefore of the name "Vicar of Christ" to the Sovereign Pontiff does not involve the consequence that alone the Bishop of Rome has possession of powers which come direct from Christ.

The powers of the Bishop have reference partly to the historic Body of our Saviour Jesus Christ—that is the Power of Order—partly to His mystical Body—that is the Power of Jurisdiction.

The Power of Order—that is the power to consecrate the Body and Blood of our Saviour in the Holy Eucharist; the power of conferring on another the fullness of the priesthood includ-

ing the power of the transmitting it so as to perpetuate the Christian life in the Church—was communicated by Christ to all His Apostles. It belongs in its fullness to the Bishops as their successors; and no human authority can hinder its validity.

For example: is it not well known that the Church of Rome recognizes the validity that continues to exist in the Orders and Sacraments of the Orthodox Eastern Church, notwithstanding that for a thousand years it has stood apart from the Roman primacy?

As to the Power of Jurisdiction—that is the power to govern the Church, the mystical Body of Christ—it belongs by divine right to the episcopate; that is to say, to the Bishops the successors of the Apostles, in union with the Sovereign Pontiff.

The episcopate, as a joint institution of government, is of divine right; and it would not be in the power of the Bishop of Rome to abolish it.

The power of jurisdiction that devolves on each Bishop is thus also of divine right; it is ordinary and immediate within the limits of the diocese assigned to the Bishop by the Sovereign Pontiff.

The peace and unity of Christian Society in

fact demand that at the head of the government of the Church there should be a supreme authority, which itself is also ordinary and immediate over the whole of the Church, over the faithful and their pastors.[1]

It is to this supreme authority that the prerogative belongs of assigning to each Bishop that portion of the Christian flock which he is called to govern, in union with the Roman Pontiff, and under his authority.

The power of jurisdiction of the Bishop over his flock is of divine right; but when theologians raise the question how to interpret this divine origin their views are not unanimous.

Some think that this power of jurisdiction comes immediately from God, as does the power of order. In this view, while the Pope nominates the Bishop and assigns him his subjects, the jurisdiction over these subjects comes from God without human intervention. This opinion according to Benedict XIV is supported by solid arguments. "Validis fulcitur argumentis."

[1] "Si quis dixerit Romanum Pontificem . . . non habere plenam et supremam potestatem jurisdictionis in universam Ecclesiam . . . aut hanc ejus potestatem non esse Ordinariam et immediatam sive in omnes ac singulas ecclesias, sive in omnes et singulos pastores et fideles, anathema sit."
Conc. Vaticanum, Sess. IV. Cap. III.

But, Benedict adds, there is also a rival view to this opinion according to which jurisdiction comes from Christ as the principal cause, but is conveyed to the Bishop by the Roman Pontiff acting as intermediary. In this view, the episcopal consecration gives the Bishop the aptness for jurisdiction, but the actual jurisdiction in its fullness is dependent upon a mandate from the Sovereign Pontiff.

This second view, says Benedict XIV, seems to have the better arguments of reason and authority. "Rationi et auctoritati conformior videtur sententia." [1]

No further decision requiring universal acceptance has ever settled the controversy.

The *Codex juris canonici* published by Benedict XIV which has full authority in the Catholic Church does not settle it either; it sums up in these terms the general doctrine of the Roman Church and the episcopate. "Episcopi sunt apostolorum successores atque ex divina institutione peculiaribus ecclesiis praeficiuntur quas cum potestate ordinaria regunt sub auctoritate Romani Pontificis." [2]

It is not necessary, according to the Fathers

[1] *De synodo diocesana*, Lib. I. Cap. IV, n. 2.
[2] Tit. VIII. Cap. I. De episcopis: Can. 329.

of the Vatican Council, that this universal authority of the Sovereign Pontiff should be considered by the Bishops as a threat or a danger. On the contrary it is a support, a power, and a protection of the authority of the Bishop over against his people. "Tantum abest, ut haec Summi Pontificis potestas officiat ordinariae ac immediatae illi episcopalis jurisdictionis potestati, qua Episcopi, qui positi a Spiritu Sancto in Apostolorum locum successerunt, tanquam veri pastores assignatas sibi greges, singuli singulos, pascunt et regunt, ut eadem a supremo et universali Pastore asseratur, roboretur et vindicetur." [1]

More than once in the course of my episcopal career experience has confirmed the truth of this declaration of the Council.

But the time has not come for me to go further into this question. I must confine myself to replying briefly to the question to which your esteemed letter has for the moment called my attention. The conference which, please God, we hope soon to renew, will have to determine more closely this question of the primacy of the Pope, which takes precedence of all other questions in importance whether Christian or social.

[1] Concil. Vatic., Sess. III. Cap. III.

ADDENDUM III

(*See* p. 41.)

SPEECH OF THE ARCHBISHOP OF CANTERBURY

at the Lambeth Colloquy, October 2, 1923

I think it absolutely essential that those who confer at Malines, should, so to speak, make their own Agenda Paper, and decide both what they are to discuss and what course of argument they would pursue. I emphatically abstain from dictating to them in the matter. At the same time my responsibilities in connexion with it are now so grave that I am anxious to state what would be in my judgment a wise course for them to follow, if the views I hold commend themselves to their judgment.

I do not think it would be advantageous to discuss again or in more detail the administrative question which was put on paper at the Conference last March. It is probable that at the ensuing Conference something more ought to be

put on paper either by both sides or by the two sides separately. This might, if it is thought necessary, re-embody what was written down last March; but, if so, it ought to emphasize much more markedly the dependent character of the suggestions made—dependent, that is, on some measure of previous agreement having been reached on the great principles which sunder Anglicanism from the Church of Rome. It is not enough to say in a clause that such things must be considered. It ought to be clear that it is only after they have been considered, and some measure, great or small, of agreement reached, that the administrative suggestions, hypothetically put forward, could become of practical utility or of very great practical interest. My own hope therefore is that the Anglican delegates will feel it to be right to put forward these larger questions, and to ascertain, if that be practicable, how far the Roman requirements as to what is *de fide* are, so to speak, cut and dry for the Anglican Church simply to accept or reject. It would be absurd to suppose that these great questions in all their range could be handled even in outline; but it ought not I think to be difficult to find some outstanding points wherein the Anglican position and the

Roman position are at variance, and to ascertain what is the rigidity of the Roman contention on such points. Of course all that could be ascertained would be the view taken on such a matter by the individual Roman Catholics conferring at Malines. They would not be the spokesmen of the Vatican in any adequate sense. None the less they may be able to simplify the issue by putting the requirements in the way that seems to them true.

If I may quote the words I have used in a private memorandum drawn up for my own satisfaction I would say, "It ought to be made clear on the Anglican side, beyond possibility of doubt, that the great principles upon which the Reformation turned are our principles still, whatever faults or failures there may have been on either side in the controversies of the sixteenth century. It would be unfair to our Roman Catholic friends to leave them in any doubt as to our adherence, on large questions of controversy, to the main principles for which men like Hooker or Andrews or Cosin contended, though the actual wording would, no doubt, be somewhat different to-day. What those men stood for we stand for still; and I think that in some form or other that ought to be made immediately clear."

ADDENDUM IV

(*See* p. 41.)

A MEMORANDUM

drawn up in view of the Colloquy on October 2, 1923.

I. The Faith Basis.

Acceptance of the Scriptures as the Inspired Word of God; of Catholic tradition as guided by God; of the Creeds as expressing in brief the content of the Christian revelation; and of the general principle that neither party shall be called upon to renounce anything that they hold to be "de fide," i.e. to pertain to the essence of the Christian revelation.

Main problem: to discover whether there is any sense in which the documents which the Churches in communion with Rome regard as *de fide* can be interpreted, so as to render them, without doing violence to the "plain meaning" of the statements therein contained, acceptable alike to all parties, notably in case of the decrees of the Council of Trent and the Council of the Vatican.

II. The Basis for Worship.

Acceptance of the general principle (i) that the liturgy and worship of the Church, its *lex orandi*, must adequately express its *lex credendi*; and (ii) that, in so far as it is possible, the rites of all countries should be such that members of any nation may join in and appreciate them.

Main problem: to discover by what means the usage of the Church of England, inherited from the past but modified at the time of the Reformation, could be rendered acceptable to the Churches in communion with Rome, particularly

(*a*) with respect to the Eucharist
(*b*) with respect to the seven sacraments
(*c*) with respect to presence and worship of our Lord in the reserved sacrament
(*d*) with respect to communion in one or two kinds.

III. The Basis for Orders.

Acceptance of the principle enunciated at the Lambeth Conference that a way must be found whereby the ministrations of Church of England clergy may become acceptable to other Churches, so that "we may, without any doubtfulness of mind, offer to the one Lord our worship and service."

Main problem : to discover a way of accomplishing this (i) with respect to Apostolic Succession, and (ii) with respect to the Ordinal.

IV. Papal Jurisdiction and Church Administration

Basis : acceptance of the hierarchic constitution of the Church with the Bishop of Rome as "Summus Pontifex"; and of the general principle that the communion of members with members and of members with the head must be as intimate and effective as possible.

Problems :

(1) How far the present system of government, as exercised by the Roman Curia, would be acceptable to, and applicable in, England with special reference to

(*a*) Papal decrees.
(*b*) The decrees of Roman Congregations and Commissions.
(*c*) The appointment of bishops and other dignitaries.
(*d*) The control of public pronouncements in matters of faith and morals, and in the matter of Scripture.
(*e*) The control of teaching in seminaries.
(*f*) Dispensations and reservations.

(2) The relation of the Church to the State.

(3) The relation of the Church of England, in the event of reunion, to the Church in England which is already in communion with Rome.

(4) The applicability of the present Code of Canon Law, with special reference to

(*a*) the Celibacy of the Clergy
(*b*) the use of the Breviary
(*c*) the position of the religious orders
(*d*) Marriage : impediments, etc., divorce.

(5) The teaching of Moral Theology.

ADDENDUM V

(*See* p. 48.)

I. From the Letter of the Archbishop of Canterbury to the Archbishops and Metropolitans of the Anglican Communion, Christmas, 1923.

. . . There remains the question—a question which has features of paramount importance—of the relation of the Church of England to the Church of Rome. You will agree with me in regarding that subject as separated from other reunion problems, not only by the history of centuries of English life but by present-day claims and utterances. And the plain fact confronts us, that in relation to that subject there exist, both at home and in the overseas Dominions, passions, dormant or awake, which are easily accounted for, but which, when once roused, are difficult to allay. I have myself been repeatedly warned that to touch that subject is unwise. Men urge that "even if the opportunity be given" it is easier and safer to let it severely alone. That may be true, but you and I are

party to the "Appeal to all Christian People," and I, at least, find it difficult to reconcile that document with an attitude of apathy or sheer timidity as to our touching the Roman Catholic question. Not only are we pledged to the words and spirit of the "Appeal" itself, but we have before us what was said on the subject by the Committee of the same Lambeth Conference in 1920. We there express our readiness to welcome any friendly discussion between Roman Catholics and Anglicans for which opportunity may be given. I have no right to say that the utterances of the Lambeth Conference have influenced Roman Catholic opinion, but I am certain that they have increased our own responsibilities in the matter.

I was accordingly glad when I learned two years ago that a private conference or conversation was about to take place at Malines between Cardinal Mercier, the venerated Archbishop of Malines, and a few Anglicans, who were to meet under his roof, with a view to the discussion of outstanding and familiar barriers between the Church of England and the Church of Rome. Though I had no responsibility for this arrangement, nor even any official knowledge of it, I was courteously informed of the proposed

visit and was furnished with the names of those who were to take part in the informal discussion. The substance of the conversation which took place was reported to me both by the Cardinal and by my Anglican friends. It necessarily turned in large part upon the position and claims of the Roman See, or in other words, the Primacy of the Pope. A Memorandum upon that and kindred subjects, which had been prepared on behalf of the Anglican group, was discussed, and the Lambeth Conference's "Appeal to All Christian People" was, I understand, considered paragraph by paragraph.

It was suggested that, with a view to a second visit, the two English Archbishops might informally nominate delegates and might suggest the outline of discussion to be followed. I did not see my way to doing this; but in the correspondence which ensued I expressed my readiness to have official cognizance of the arrangements, provided that a corresponding cognizance were given by the Vatican. Satisfied, after correspondence, with regard to that point, I gave what was described as friendly cognizance to a second visit of the Anglican group to Malines in March, 1923. They again received the kindly hospitality which has been

courteously given and gratefully welcomed. The conversation on that occasion turned in part on certain large administrative problems which might arise, if and when a measure of agreement had been reached on the great doctrinal and historical questions sundering the two Churches.

It was agreed that a third Conference should take place. A wish was expressed on both sides that the number of participants should be enlarged, and I took the responsibility of definitely inviting Dr. Charles Gore, late Bishop of Oxford, and Dr. Kidd, Warden of Keble College, Oxford (both of whom had given special attention to the Roman question), to join the Anglican group. This increased my responsibility in the matter, and I found myself in concurrence with His Eminence the Cardinal, as well as with the members of the original group, in pressing the point that prior to any discussion upon the possible administrative questions which might arise, attention should be concentrated upon the great doctrinal and historical issues at stake between the two Churches. Certain memoranda were prepared and circulated,[1] and I had the

[1] To prevent misunderstanding I ought perhaps to explain that Lord Halifax's second pamphlet entitled *Further Considerations on Behalf of Reunion*, was published independently, to

advantage of personally conferring at Lambeth with the five Anglicans who were to take part in the third Conference, together with a few friends and counsellors of my own whom I had invited to meet them.

I have always considered it important that our representatives at Conferences which take place, whether with Free Churchmen, or Orthodox, or Roman Catholics, should remember that, while each individual remains free to express his own opinions, what is in question is not what any individual may think, but what the great Anglican body has in the past maintained or is likely to maintain in the future. I found, as I anticipated, that our visitors to Malines were not likely to forget what the historical Anglican position and claims have been in the past, as set forward for example by the great theologians of the sixteenth and seventeenth centuries—a position which we have no thought of changing or weakening to-day. It seemed to me to be fair to the Roman Catholic members of the Malines Conference, now augmented by the addition of Monsignor Batiffol and the Abbé

express his personal view on certain points relating to the origin and growth of the Papacy. That view, as their writings show, is not shared by his Anglican companions at Malines.

Hemmer, that the firmness and coherence, as we believe, of our Anglican doctrine and system should be unmistakably set forward.

Thus arranged, the third Conference was held at Malines a few weeks ago, under the same kindly hospitality as before. There has not yet been time to weigh adequately the record of the conversations which took place, still less the unsolved differences which they exhibit, but I may say at once that, as was inevitable, the discussions are still in a quite elementary stage, and that no estimate, so far as I judge, can yet be formed as to their ultimate value. Needless to say, there has been no attempt to initiate what may be called "negotiations" of any sort. The Anglicans who have, with my full encouragement, taken part, are in no sense delegates or representatives of the Church as a whole. I had neither the will nor the right to give them that character. This is well understood on both sides. They have sought merely to effect some restatement of controverted questions, and some elucidation of perplexities. And to me it seems indubitable that good must in the Providence of God ensue from the mere fact that men possessing such peculiar qualifications for the task should, in an atmosphere of goodwill on either

side, have held quiet and unrestrained converse with a group of Roman Catholic theologians similarly equipped. No further plans are yet prepared, but it is impossible, I think, to doubt that further conversations must follow from the careful talks already held. At the least we have endeavoured in this direction, as in others, to give effect to the formal recommendation of the Lambeth Conference that we should "invite the authorities of other Churches to confer with [us] concerning the possibility of taking definite steps to co-operate in a common endeavour . . . to restore the unity of the Church of Christ."

I have stated all this somewhat fully, though there is, of course, a great deal more which might be said. Indeed, I hope myself before long to have an opportunity in Convocation or elsewhere of speaking further upon the subject. From the nature of the case the proceedings have of necessity been private. To attempt them publicly would have been obviously futile. For what has been done I am bound to accept full personal responsibility. I have not thought it right, or indeed, practicable, to involve others in that responsibility, though I have confidentially informed all our Diocesan Bishops, and especially the Archbishop of York, of every step that has

been taken. The difficulties are immense. You know them as clearly as I do. They may prove to be, for some time to come, insuperable. Paul may plant and Apollos water, it is God who giveth the increase.

ADDENDUM VI

(*See* p. 49.)

II. From a letter of H.E. Cardinal Mercier to his Clergy.

MALINES,
January 18, 1924.
Feast of St. Peter's Chair.

DEAR BROTHERS AND FAITHFUL COLLEAGUES,

For more than two years I have been in close and intimate touch with a few prominent Anglicans, for whom I feel a deep regard and sincere affection. We have met several times; I have exchanged letters with them on the matter which lies closest to my heart, the interests of my mother, the Catholic Church.

I had no thought of acquainting you with this intercourse, for the very simple reason that, in the nature of things, its object is confidential, and that, furthermore, we had mutually agreed to make nothing public without previously agreeing to do so.

This agreement has been maintained. The Archbishop of Canterbury has revealed nothing of the subject-matter of our conversations nor of the conclusions reached; but he has considered that the time had come for him to define, for the members of his community, the position he had taken with regard to our conferences. This was, on his part, a loyal action, and one in which, moreover, I fully acquiesced. It was also a courageous line of action to take; for in view of the state of mind, whether expressed or mute, which is, to this day, very prevalent among English non-Catholics, and often expressed in the one word, "anti-papism," it was easy to forecast that any deference, even implicit or remote, shown to a bishop, to a Cardinal of the Church of Rome, would bring down on its originator anything but sympathy and congratulations.

In a letter dated Christmas 1923, written to the Archbishops and Metropolitans of the Anglican communion, Dr. Randall Davidson, Archbishop of Canterbury, alludes to the "Malines Conversations" and states that, without having sanctioned them officially, he had cognizance of them, took an interest in them, and hoped for beneficent results from them.

Protestant circles, and a few Catholics, were

greatly moved by this revelation. For several weeks magazines and newspapers saw in it a subject for lively controversy, the echo of which crossed the Channel. The public taste for daily sensational news, the keenness of journalists to provide it in a "crescendo" form, created, around our peaceful meetings at Malines, an atmosphere of artificial agitation, from which it is my duty to disengage them.

I will put the facts before you, in order to set them back in their true simplicity. I will give you the reasons that prompted them. And, seizing the opportunity afforded to me, I will endeavour, dear brothers, to draw from them, both for you and for myself, a lesson which is a governing principle of the pastoral ministry.

I. The Facts.

Religious authorities, all those, indeed, who note the evolution of human thought and the trend of events, are frightened to see the de-christianization of the masses, and the swiftness with which the disappearance of faith in the supernatural leads to the denial of all religion. The phenomenon is general; but it is more momentous, more noticeable, in Protestant countries than in Catholic.

Already in 1877, Newman wrote[1]: "I have all that time (50 years) thought that a time of widespread infidelity was coming, and through all those years the waters have in fact been rising as a deluge. I anticipate a time, after my life, when only the tops of the mountains will be seen, like islands in the waste of water"; and he adds, "I speak principally of the Protestant world."

Yes, "principally of the Protestant world," because there the doctrinal divergences which separate the many "confessions" or "denominations" deprive religiously-inclined souls of the lightsome and comforting vision of Unity in the Faith. The splitting up of the Protestant communion leads to liberalism in religious matters, that is to say, to that vague kind of belief which holds that all religions stand for free opinions of equal value, because none of them can claim in its favour the proof of a positive and divine Revelation; then indifference to matters religious inevitably leads to irreligion, to anti-religious sectarianism.

Clear-sighted Protestants saw Newman's predictions come true. Those among them who still believe in the divinity of Christ and of his

[1] Wilfred Ward: *Life of Newman*, vol. ii, p. 416.

Church, those who pray for themselves and for the souls entrusted to their keeping, see the danger, and know it is their duty to counteract it; they also believe, in the words of the Acts of the Apostles, "Neither is there salvation in any other." [1]

Such men as these it was, men of Faith and of high standing, both intellectual and moral, whom Divine Providence led towards us, and whom we had the joy of welcoming.

The two first visitors were Lord Halifax,—whom all in England irrespective of creed or party hold in honourable estimation and love—and Abbé Portal, a son of S. Vincent de Paul, priest of the Mission, formerly superior of a Seminary, who, during the pontificate of Leo XIII, was so intimately associated with the question of the validity of Anglican orders. At the present moment he is engaged in a most fruitful apostolate among the youth of the University of Paris.

They first paid me a visit in October, 1921, and came back on the 6th, 7th and 8th of December in the same year, accompanied by two prominent Anglicans, Dr. Armitage Robinson, Dean of Wells, a close friend of the Arch-

[1] Acts iv. 12.

bishop of Canterbury, and Dr. Frere, at that time superior of the Community of the Resurrection, and now Bishop of Truro. Both are authors of highly appreciated works on scripture and ancient Christian literature.

I asked the Abbé Portal and our learned and trusted Vicar-General Mgr. Van Roey, Master in Theology of Louvain, to meet them.

From the start it was agreed that the subject-matter and ultimate results of our conversations were to be private until such time as, by mutual consent, we should consider it useful and advisable to publish them.

The two groups met again in Malines in March, 1923. Last November, a third meeting took place. This time, besides Dean Robinson and Dr. Frere, we were joined by Dr. Charles Gore, a well-known figure,—who relinquished the bishopric of Oxford to devote himself completely to study and religious science,—and Dr. Kidd, Warden of Keble College, a foremost figure in Oxford.

Mgr. Batiffol, Canon of Notre-Dame in Paris, widely known for his works on the origins of Christianity, and Abbé Hemmer, parish priest at Saint-Mandé, who formerly taught history at the Catholic Institute in Paris, kindly consented

to give us the benefit of their presence and valuable assistance.

Such were our guests: I will now retrace the character of our meetings.

These were, from first to last, *private*: they were conversations in a private sitting-room. There was no question of ecclesiastical authorities sending official delegates to meet one another.

This assertion of ours was clearly stated by the Archbishop of Canterbury in his message to his Metropolitans; though some seem to be unwilling to take account of it. He knew, of course, that his friends were in touch with members of the Catholic clergy in Malines; he followed, with sympathy and interest, the development of our talks; but, from the beginning he insisted on stating, as I did also, for that matter, that we in no way committed, either the communions to which we belonged, or the authority which, in some measure, we represented.

Our discussions were thus in no sense "negotiations." To negotiate, it is necessary to possess a mandate; and, neither on the one side nor on the other were we invested with a mandate. I, for my part, had asked for no such commission; it was enough to know that I was acting

in agreement with the supreme Authority, blessed and encouraged by it.

We set to work, inspired by a common desire for mutual understanding and brotherly aid, firmly resolved to banish the spirit of barren controversy.

Obviously on several fundamental questions the disagreement of both sides was notorious; we all knew that. But we said to ourselves that if truth has its rights, charity has its duties; we thought that, perhaps, by dint of open-hearted converse, and the intimate conviction that in a vast conflict centuries old, all the wrongs were not on one side; by an exact formulation of certain controverted points, we might break down preconceptions, dispel ambiguities, smooth the way along which loyal souls, aided by grace, might discover, if it pleased God, or recover, the truth.

As a matter of fact, at the close of each of our three meetings, we all felt closer to, more trustful towards, one another, than at the start. Our guests told us so; wrote it to us; we said as much to them, and I am happy to repeat it here.

Need I add, nevertheless, that neither my friends nor I, when essential questions were

mooted—such as the Primacy of the Pope, as defined by the Vatican Council, which was the first and the last of our business—gave away, in a foolish desire for union at any price, one single article of our Catholic Apostolic and Roman Creed?

Our gatherings were thus private, and they pledged only our personal responsibility; they were quite friendly; I add that they were both instructive and edifying.

No book is as valuable as personal intercourse. Conversation sheds light on intimate things which do not pass into print. Men are created to love one another; how often men who are strangers to one another, and who in separation might have felt at enmity, in getting to know one another, experience a moving delight which they had never anticipated.

When the time came for parting, this result of the Conversation was so prominent that heartfelt joy filled our company.

"It is probably the first time for four centuries," said one of them, "that scholars, both Protestant and Catholic, have been able to converse, with complete frankness, for hours and hours, on the gravest matters which intellectually divide them, without the cordiality of their

relations being disturbed for a moment, or their confidence in the future being shaken."

No doubt the kindling of hearts towards one another is not itself unity in Faith, but it certainly prepares the way.

Men, especially groups of men, who have been total strangers for years, living in an atmosphere laden with distrust if not antagonism, anchored in the depths of their consciousness by a tradition four centuries old, are ill-prepared to admit the arguments, however cogent, with which their opponents wish to convince them.

Does not the Council of Trent, before defining Christian justification, assert that in order to be prepared therefore, men's hearts must be fitted to receive God's word: "Praeparate corda vestra Domino"? [1]

If Divine Providence has led towards us, rather than towards others who are more directly involved in religious controversy, some separated brethren, may it not be precisely because, by virtue of our very isolation, we were able to accomplish, in a calmer atmosphere, a task which is quite preliminary to any negotiations and any decisions, which would need to be eventually conducted and concluded elsewhere?

[1] 1 Kings vii. 3.

In the very midst of the outcry which greeted the Archbishop's letter to his Metropolitans, one of our colleagues, the one to whom I have just alluded, wrote to me: "It is hard for any one outside England to understand how serious the step will appear in the public mind, both among those who care deeply and among those who do not. Even if we get but little further at present, I believe that this will mean a new outlook for very many, and that we shall have good reason for true gratitude to God. . . ."

Further, at the close of each of our meetings we separated with a mutual promise to pray, and to ask our flocks to pray, for the success of the holy cause which had brought us together.

I remember that Dr. Kidd, at the beginning of our last discussion, said to me, and I hope it is no indiscretion to quote him: "I prayed with my pupils before leaving Oxford, and I know that they are now praying to the Holy Ghost for the successful issue of our labours."

* * * * *

Such are the facts; let us see why these conversations took place.

II. Why these Conversations?

Why? First and foremost because I am not entitled to shirk an opportunity which comes in my way of fulfilling a duty of brotherly love and Christian hospitality.

I would not for the whole world tolerate that one of our severed brethren should have the right to say that he knocked trustfully at the door of a Roman Catholic bishop, and that this Roman Catholic bishop refused to open it to him.

A great nation was, for more than eight centuries, our beloved sister; this nation gave to the Church a phalanx of saints whom to this day we honour in our liturgy; astonishing reserves of Christian life have been maintained in its vast empire; from it numberless missions have gone out far and wide; but a gaping wound is in its side; we Catholics, kept safe, by the grace of God, in the whole truth, we weep over the criminal sundering which tore it away, four centuries ago, from the Church, our Mother. And forsooth there are Catholics who would that, like the Levite and the Priest in the parable of the Good Samaritan, a Catholic bishop should pass by this wound with proud indifference, and

refuse to pour a drop of oil into this gaping wound, to bandage it, and try to lead the wounded man to the Hospital whither God's mercy calls him!

I should have been declared guilty, had I committed such an outrage.

Oh! I know well that those who misjudge us will not deny our charitable intentions, but they consider our interference inopportune or ineffective.

Inopportune—because they think it is wiser to let the separated churches go to complete decay, the contrast between truth and error become sharper. Then the evil in an extreme form will arouse alarm, and the moment will have come for the triumph of truth.

Ineffective—because, so it seems, we do not adopt the right method of apostolate, i.e. the appeal to individual conversions.

Let us weigh, for a moment, these two charges.

Nowhere in the Gospel do I find this policy of extremes either taught or commended. On the contrary, I read that the smoking flax must not be quenched.

How many Protestant believers fall into religious liberalism; its victims, become indifferent to any positive creed, lose all religion, swell the

ranks of atheism, and thereafter of anarchy; this is an evil, a great evil!

Sincere Christians feel powerless—a feeling which we also share in a minor measure—to arrest this evil. They appeal to us for help, at least they invite us to discuss with them the means of stemming the tide of irreligion. And there are some extremists who would fain bar the way!

Here at hand we have one way of giving actual help to our separated brethren; that is one good reason for welcoming them open-heartedly.

"So far so good," will perhaps be the answer; "but this was not the primary object that you had in sight; the main point was to bring immediate weight to bear on believers, members of the 'High Church,' in order to win them back to Rome."

The main point! How does the critic know? —We never had a thought of ranging in order of importance the guiding motives of our conduct.

We took a view of a general situation, in which there were found men whose souls were keenly alive to their duties towards themselves, and towards others by reason of their social influence.

We ventured to think that we might hold out a helping hand of spiritual help to our brothers. Thus we had a second reason for conversing with them.

Next you tell us that we are going the wrong way to deal with this situation and that our method is a clumsy one; "experience," you say, it is alleged, "has taught you not to consider groups; individuals only must be taken into account." Here I say to my critics, "By what authority do you limit the workings of the divine Mercy? By all means, be stirred about individuals, enlighten, pray for, work for, as much as you may, every soul whom God sends across your path; no one will think of blaming you."

But what entitles you to put aside groups of men? It is your exclusiveness which is to be blamed.

Allow me to refresh your memory. Listen to Leo XIII's weighty words, when on April 14, 1895, in his Apostolic Letter "Amantissimae Voluntatis," he spoke not to individuals, but to the whole English people, "ad Anglos." Read that Encyclical once more; it is addressed to a nation, "gens anglorum illustris"; and, when ending his Letter the holy Pontiff foresees the

objections which pessimists will raise against his optimism, he writes: "Difficulties lie in the way, no doubt, but they are not such as may slacken a whit our apostolic charity, or discourage your purpose." "No doubt, disagreement has taken root and developed by the change of events and long lapse of years: but is that a reason to despair of reconciliation and peace? By no means, if it be God's will." "The results which the future may bring are not to be measured by human reckoning alone, but above all by God's power and Mercy." "When we are engaged in a great and toilsome task" (it is still the Pope speaking), "let us have a good motive and undertake it with a pure and generous heart; God then will be with us, and His Providence will be the more gloriously revealed by triumphing over these difficulties."

A year and a half later, in September, 1896, the Pope finds himself obliged to inflict on Anglicans a bitter disappointment: he proclaims the invalidity of their orders. Will he give up his far-reaching hopes, and advise only a propaganda addressed to individuals? Far from it; he ends his Apostolic Letter "Apostolicae Curae" by a direct appeal to the ministers whom, to his sorrow, he has grieved; and

he calls on individuals and on the whole mass, to follow them in their conversion.

"We will, to the best of our powers," he says, "never cease to further their reconciliation to the Church: and we fervently hope that their example will be followed by individuals and the whole mass."

The truth is, dear brothers, that to this day, notwithstanding all the loud ranting about the intellectual progress of the people, about the independence of their judgment, and the sovereignty of their initiative, it remains true that the masses do not lead, but are led; do not command, but obey. Even in a democracy, the social system remains an oligarchy. Demagogues on the one hand, an élite on the other, strive for the leadership of the masses, the former so as to preach violence and raise revolution, the latter to safeguard order and discipline.

Therefore, if it be God's purpose that one day our brothers, severed from us since the days of Luther, Henry VIII and Elizabeth, should re-enter the Church, it will be the duty of the élite to show the way for this return. And if men placed in authority and of high moral standing, esteemed by all, take a calmer view of the relation which Christ established between

the faithful, the episcopate and the Papacy, a great step will have been taken towards Catholic Unity. That is what Leo XIII so clearly asserts in his letter "Ad Anglos." It is that spirit which we endeavoured, in obedience to that illustrious Pontiff, to instil into our "Conversations of Malines."

And now if you ask us what we hoped for, and still look forward to, we can only answer, in the words of Our Holy Father Pope Pius XI, that "the unity of nations in the Catholic Faith is, above all, God's work." [1]

God's universal Providence "reacheth from end to end mightily and ordereth all things sweetly," [2] but the appointed time is His Own secret. For His ends He makes use of secondary causes; He condescends to ask the servants of His divine Son to work with Him: but of no one does He claim, to none does He promise, success.

* * * * *

CONCLUSION.

In conclusion, my dear brothers, I wish you to understand that if I have written to acquaint you of an attempt which, in my judgment, was

[1] Encyclical "Ecclesiam Dei." [2] Wisdom viii. 1.

to remain private, it is because I notice that some of our brothers in England, misled by fanciful news and chance comment in the press, misinterpreted my line of action and were offended by it; I have also spoken lest, distorted as my doings have been, in your sight, I might be deprived of the pious help which I expect from you in this matter, as in all that I undertake for God's glory, and lest the spiritually unselfish conception that you should have of your apostolate should be warped.

I trust I have been able to dispel the slight cloud of dust which, for a moment, drifted between us and our friends in England.

I hope too that I have quickened your sympathy for the holy cause of the Church's Unity, in answer to the supreme wish of the Pastor of all pastors, Our Lord Jesus: "That they all may be one!"

"I am the good shepherd," He says, "and I know (and love) mine, and mine know me, as the Father knoweth me, and I know the Father: and I lay down my life for my sheep."

But at once He adds: "And other sheep I have,"—Our Lord does not say "I will have" or "I would fain have," He says "I have, they are mine, *habeo*";—"other sheep I have, that

are not of this fold; them also I must bring, and they shall hear my voice, and there shall be one fold and one shepherd." [1]

There you have, dear brothers, the Master's own word: "Oportet," "I must . . ." and following Him, you also *must* go forth through the bushes, along the rocky paths, under the burning desert sun, go forth, wherever sheep are to be found and won back.

Be not anxious about success; God does not demand it of you; what He does require of you, says St. Bernard, is the care of those that are ailing,—He gives the healing: "Curam exigeris, non curationem." [2]

In all parts of your pastoral ministry, pray and toil and give, tire yourselves out; make a start, hold out, be steadfast; true, always, to St. Bernard's saying: "Never lose hope; yours is the care, His the healing."

Yours most devoted in Christ,

D. J. CARD. MERCIER,
Archbishop of Malines.

[1] John x. 14–16.
[2] St. Bernard, *De Consideratione*, Bk. iv, Chap. II.

ADDENDUM VII

(*See* p. 57.)

THE PAPER OF BISHOP GORE

On Unity with Diversity.

Concedit (Cyprianus) salvo jure communionis . . . diversum sentire.[1]

So St. Augustine commemorates, with constant reiteration, St. Cyprian's toleration, as shown in the heat of a great conflict. St. Cyprian was stoutly maintaining against the extreme pressure of St. Stephen, the Bishop of Rome, the duty of re-baptizing, or (as he would have said) of baptizing simply, converts from heretical or schismatical bodies. With the merits of the controversy, subsequently decided against St. Cyprian, we need not concern ourselves. But in conducting it, Cyprian showed a spirit the opposite of Stephen's in the respect, that whereas the Bishop of Rome was ready to excommunicate the re-baptizing churches, Cyprian

[1] Aug. *De bapt.*, iii. 5.

constantly insisted on the duty of tolerating those who held the validity of heretical baptism, even though (according to his own belief) this meant the recognition, as members of the church, of those who had not really been baptized at all. His insistence on this duty of tolerance was based on the principle that there are certain fundamental conditions of Catholic communion, but that we must not extend those conditions beyond the certain warrant of scripture.[1] Beyond this lies the region in which it must be allowed to each bishop with his church to hold different opinions or follow different practices, without breach of "communion" or "unity."

After 150 years St. Augustine is in controversy with the Donatists, and finds them quoting St. Cyprian's doctrine and practice in support of their own; and, with even wearisome reiteration, he repudiates their right to quote that venerated saint and martyr, because they did not follow his example and precept of "perseverantissima tolerantia." As to the teaching of Cyprian, he says, that has been pronounced erroneous by a "plenaria synodus" representing the authority of the whole church—an authority which he professes no doubt St. Cyprian would

[1] Cypr. *Ep.*, lxxiv. 2, 10, divinae traditionis caput et origo.

have accepted. (He tacitly modifies, we notice, the extreme assertion which St. Cyprian makes of the rights of an individual bishop.) But, while the Donatists respect his error, they do not follow his charity—his, who constantly and emphatically refused to allow the opinion which he held to be true, and the practice which he held to be right, to justify any breach of communion with those who thought differently.

In this high estimate of St. Cyprian's spirit of toleration within the limits of Catholic communion, on any matter on which judgment of the whole church had not yet been expressed by an authoritative council, St. Augustine is following St. Jerome [1]; and a similar assertion of the principle of diversity within unity could be quoted from other writers of authority.

I suppose that the principle of toleration on matters which are not *de fide* will be admitted on both sides of our conference table. The differences between us would only begin to appear with the question, What is *de fide*, or—What is the final voice of authority? What I want to do now is not to raise this question directly, but

[1] *Adv. Lucif.* 25. "non cum anathemate eorum qui se sequi noluerant"; "salvo inter collegas pacis et concordiae vinculo, quaedam propria, quae apud se semel sint usurpata retinere."

to put in a plea for the widest possible toleration of differences between churches, both in doctrine and practice, on the basis of agreement in the necessary articles of Catholic communion.

I notice that there are two distinctions in matters of doctrine which appear to be recognized by Roman Catholic theologians. There is (1) the distinction between doctrines which are *de fide*, and those that, however much authority they may have behind them, do not bind strictly under penalty of heresy, or are not binding at all, but are simply at best pious opinions. And there is also (2) another distinction, between doctrines which are *fundamental* and those which (whether *de fide* or no) are not fundamental. Fr. Janssens shall be my authority with regard to this latter distinction.[1] As to fundamentals he tells us that "quid non fuit ab initio doctum et universaliter creditum non pertinet ad Christianae fidei fundamenta." As an instance of fundamental doctrine, "which does not admit of real development," he takes the doctrine of the deity of our Lord. "It has always," he says, "been explicitly held. There was no development in the doctrine; but only

[1] See his letter quoted in Lord Halifax's *Further Considerations*, p. 58. (Mowbrays.)

in its terminology." As an instance of non-fundamental doctrines he takes the infallibility of the Pope. Of this he says, "It has admitted of a true development, a real doctrinal progress. It has been held but implicitly in the first three centuries, and had been doubted afterwards, even until the time of the Vatican Council."

Now I am not concerned to inquire whether Fr. Janssens' statement of the opinion and teaching of the primitive and later church about Papal infallibility is in any sense adequate. That is not our immediate concern. But I am concerned to ask whether his use of "implicit" and "explicit" is acceptable. He does not enumerate the doctrines which he considers fundamental. Doubtless the doctrine of the Holy Trinity would be one. But I should have doubted whether it could be truly said that this doctrine had always been *explicitly* held in the Church, e.g. in the age of Hermas and Justin Martyr. Surely it is truer to say that this was taught implicitly by St. Paul and St. John and was always implicit in the tradition, but became explicit—say, in the 3rd and 4th centuries. For "explicitly," in his definition of "fundamental" doctrines I should wish (in order to make it correspond with the facts) to substitute the words

"in substance." *Fundamental doctrines are those which have always been held and believed in the church in substance. There has been no development in the doctrine but only in the terminology.* In this sense there is a series of doctrines which would be pronounced fundamental—not only the doctrine of the Holy Trinity and the Incarnation, but the doctrine of the Atonement and of the inspiration of Scripture, of the visible Catholic church, of the sacraments as real instruments of specific divine gifts, of the resurrection of the body, of the intermediate state, of the day of judgment, of heaven and hell. Vincent of Lerins' *Commonitorium* supplies us with a formula which exactly corresponds to fundamental doctrine, so defined.

Only Vincent of Lerins (tacitly, I suppose, pleading for St. Augustine's better mind against his worse) would not admit that any doctrine, not really and in substance believed everywhere and always in the church, could be part of the necessary faith. He would not admit development in the *substance* of the gospel or the church's authoritative message.

This also appears to be the final mind of J. H. Newman. Lord Acton called attention to Newman's apparent withdrawal from the extreme position of the *Essay on Development*. Newman's

latest statement (as far as I know) is as follows [1]: "First of all, and in as few words as possible, and *ex abundanti cautela*, every Catholic knows that the Christian dogmas [2] were in the church from the time of the apostles; that they were ever in their substance what they are now; that they existed before the formulas were publicly adopted, in which, as time went on, they were defined and recorded." Here Newman precisely agrees with Vincent: and, like Vincent, he applies the formula to the dogmas of the church generally. He does not contemplate anything being *de fide* which does not come under the formula. But this formula (as it seems to most of us Anglicans) manifestly and certainly does not apply to certain dogmas which we understand the Roman Catholic Church imposes as a condition for Communion—not, for instance, to the infallibility of the Pope or the immaculate conception of Mary, nor to the definition of transubstantiation, nor to the definition of purgatory. With regard to the Infallibility Fr. Janssens admits this. He admits development *in substance* which Vincent and Newman would not seem to admit.

[1] *Tracts Theol. and Eccl.*, p. 287.
[2] I suppose him to mean "*all* the Christian dogmas."

Now here I come to the point of the *memorandum*. It is an appeal to the theologians of the Roman Catholic Church in the first instance. I write as an Anglican who has not the slightest desire to submit himself as an individual to the Roman authority, but with all his heart would desire to see his own Anglican communion, and the communion of the Orthodox Churches, reunited to the Holy See of Rome. The, at present insuperable, obstacle to such reunion, in either case, is the demand for submission, as to *de fide* dogmas, to certain doctrines, which, as claiming to be part of the essential faith, seem to us to conflict with history and with truth. I must speak with simple frankness. It seems to us illegitimate to yield that faith which we give to the fact of the virginal conception of our Lord, or His resurrection, or His ascension, to the immaculate conception of Mary. The former group of accepted facts rest upon original witness and good evidence: the latter on nothing that can be called historical evidence at all. But to believe in a *fact* on the mere ground of *a priori* reasoning as to what is suitable, without any evidence of the fact, seems to us to alter the fundamental character of the act of faith. It also makes with the other doctrines just specified,

a claim for the authority of the church, as centralized and absolute, which the ancient church never made. It frees it from all those restrictions of universal agreement and unvarying tradition and scriptural authority—which in our judgment make the fact of faith rational. It seems to us quite clear that the existing Roman demand, as we understand it to be made, is and remains quite unacceptable. I do not want to discuss the position. But it is notoriously the position of Anglicans in general and of the Orthodox.

Now what I want to ask, with a sense of my audacity in asking it, is—not for any strictly theological change in the teaching of the Roman Church, nor for any alteration in the terms of communion required of those who feel constrained to submit themselves individually to the Roman Church. What I am thinking of is corporate reconciliation. And what I am asking of my friends of the Roman Church, with whom I am having the pleasure of quiet conference, is whether the idea is wholly impossible that, with a view to the corporate reconciliation of the Orthodox Communion and the Anglican Communion, the Roman Church could be content to require not more than the acceptance

of those articles of faith which fall under the Vincentian Canon, which I am at present supposing to coincide with what Fr. Janssens recognizes as fundamental doctrines.

C. G.

P.S.—As a minor inquiry I want to ask what exactly is required of any Orthodox Group desiring to become Uniats. Is it the requirement formulated at the Council of Florence? Or the "Creed of Pius IV," or what? And are those formulas regarded as final and infallible?